

are sufficiently related, whether the interests of judicial economy will be served, and whether the employer will be prejudiced”].)” (*Iloff v. LaPaille* (2025) 18 Cal. 5th 551, 569.)

By their motion, Defendants make several substantive challenges to Plaintiffs’ additional claims. However, Defendants have provided no authority, and the Court is not aware of any, that would permit treating a “Notice of Intent to Seek Additional Claims at Trial” as a pleading subject to Code of Civil Procedure § 438. Furthermore, as Plaintiffs note, the prerequisite requirement that “the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired” has not been met. (CCP §438(f)(2).)

The motion is **denied**.

9. 9:00 AM CASE NUMBER: C25-00144

CASE NAME: YONGCHAN PARK VS. MICHAEL YANG

HEARING ON SUMMARY MOTION FILED BY PLAINTIFF

FILED BY:

TENTATIVE RULING:

Plaintiff filed the instant motion on October 2, 2025. Initially, the hearing date was set for December 22, 2025 but was continued to January 12, 2026. In opposition, Defendants filed a Declaration of Richard D. Schramm as well as what purported to be memorandum of points and authorities in opposition (but was instead an opposition to Plaintiffs’ motion to compel further response to special interrogatories) on December 5, 2025. The Court is not in receipt of any other documents in opposition by Defendants. However, Plaintiff’s reply documents (such as a reply memorandum, response to Defendants’ separate statement of undisputed and disputed facts, as well as objections to evidence) suggest that additional documents in opposition were served on Plaintiff.

Parties are ordered to appear to discuss the briefing on the Motion for Summary Adjudication and a schedule for the hearing and the trial.

10. 9:00 AM CASE NUMBER: C25-00229

CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV

***HEARING ON MOTION IN RE: STAY**

FILED BY:

TENTATIVE RULING:

See line 11.

11. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
***HEARING ON MOTION IN RE: SUBSTITUTION OF PARTY FILED BY UMPQUA BANK, AN OREGON STATE-CHARTERED BANK.**
FILED BY:
TENTATIVE RULING:

At the hearing on November 03, 2024, this Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nickolai Popov on December 16, 2025.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

In the name of judicial efficiency, the Court is going to continue this hearing to March 16, 2026, at 9AM in this department, to ensure the Court substitutes the proper administrator of the Estate of Nickolai Popov.

12. 9:00 AM CASE NUMBER: MSC19-01794
CASE NAME: MURPHY VS LU
HEARING ON SUMMARY MOTION ON 2ND AMENDED CROSS-COMPLAINT
FILED BY: WEE, BILLY
TENTATIVE RULING:

Off calendar. This case has been transferred to D 32. The hearing will be reset in that department.

13. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION FILED BY: MBADIKE-OBIORA, MD, MAUREEN
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Maureen Mbadike-Obiora, MD's ("Plaintiff") motion for summary adjudication of her causes of action for breach of the Primary Care Provider Agreement and accounting. The Motion is opposed by Defendant Central East Bay IPA Medical Group, Inc. dba Muir Medical Group IPA, Defendant Kenneth Bowers, MD, Defendant Ute Burness, and Defendant Steven Kaplan, MD (collectively "Defendants"). Plaintiff moves for summary adjudication of her causes of action for breach of the primary care provider agreement and accounting.

The Court notes that this motion is being heard along with Defendants' cross-motion for summary